D. Consumer Commission complaint — preparation draft

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PREPARATION DRAFT ONLY. Consumer Commissions have their own format, affidavit and document requirements, and complaints are filed through e-Jagriti (e-jagriti.gov.in). Use this to organise your facts; check the portal's requirements, and consider asking an advocate or a recognised consumer association to review it before filing.

BEFORE THE DISTRICT CONSUMER DISPUTES REDRESSAL COMMISSION, Kochi

Consumer Complaint No. _____ of 20___ (to be assigned)

IN THE MATTER OF:

Meera Nair, [ADD: full address], Kochi — Complainant

VERSUS

1. WristWorld Retail, [MISSING: seller's registered address (from the invoice / platform seller page)] — Opposite Party No. 1
2. TrendCart, [MISSING: platform's registered office address] — Opposite Party No. 2

COMPLAINT UNDER SECTION 35 OF THE CONSUMER PROTECTION ACT, 2019

1. The Complainant is a consumer

The Complainant bought the goods for consideration through an online transaction for personal use and is a 'consumer' under Section 2(7) of the Consumer Protection Act, 2019.

2. Facts of the case

1. On 18 October 2026, I placed an order for smartwatch on TrendCart, sold by WristWorld Retail (Order ID: TC-7781-2026) and paid ₹6,999.
2. I bought the product relying on its listing/advertisement. The product supplied does not match what was described. In my words: “I bought a smartwatch for Rs 6,999 on TrendCart because the listing said it was waterproof (5ATM) and had built-in GPS. The watch I received has no GPS and the box says only splash resistant.”
3. I raised the matter with the seller/platform on 24 October 2026 (reference: RR-664120). What I did: “I raised a return request on 24 October 2026 in the app; it was rejected the same day.”
4. The response I received: “The seller refused to accept a return, saying the product is as per description.”
5. As of 7 November 2026, the matter remains unresolved and I have not received the refund of ₹6,999 I asked for.

3. Grounds

1. Under Rule 6(3) of the Consumer Protection (E-Commerce) Rules, 2020, a seller on a marketplace shall not refuse to take back goods or refund the consideration where the goods are not of the characteristics or features as advertised or as agreed to. Where the platform itself is the seller, Rule 7(4) imposes the same duty.
2. I submit that the listing falsely described the product, which may amount to a misleading advertisement under Section 2(28) and an unfair trade practice under Section 2(47)(i)(a) of the

Consumer Protection Act, 2019; sellers must also ensure advertisements are consistent with the actual characteristics of goods (Rule 6(4) of the E-Commerce Rules).

4. Cause of action

The cause of action arose on 18 October 2026 when the order was placed, and further on 18 October 2026 and on each date the Opposite Parties failed to resolve the complaint, and it is continuing.

5. Jurisdiction

Pecuniary: the value of goods paid as consideration is ₹6,999, which does not exceed ₹50 lakh; this Commission has jurisdiction under Rule 3 of the Consumer Protection (Jurisdiction of the District Commission, the State Commission and the National Commission) Rules, 2021.

Territorial: the Complainant resides / personally works for gain at Kochi, within the limits of this Commission (Section 34(2)(d) of the Act).

6. Limitation

The complaint is filed within two years of the cause of action, as required by Section 69 of the Consumer Protection Act, 2019.

7. Prayer

The Complainant respectfully prays that the Hon'ble Commission may direct the Opposite Parties, jointly and/or severally, to:

1. Refund the full amount of ₹6,999 paid and take back the product at their own cost.
2. Pay interest on the amount refunded and the costs of this complaint, as the Hon'ble Commission may deem fit.
3. Grant any other relief the Hon'ble Commission considers appropriate.

8. List of documents

- Annexure A-1: Invoice / bill
- Annexure A-2: Product listing / advertisement screenshot
- Annexure A-3: Photographs of the product / damage
- Annexure A-4: Complaint / ticket reference number

9. Verification

I, Meera Nair, the Complainant, state that the facts above are true to my knowledge and belief. [ADD: place, date and signature; affidavit as required by the Commission]

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